

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

W.P. No.2021 of 2026.

Faizan Kareem

Versus

Addl. District Judge and 3
others

S.No.of order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties' counsel, where necessary.
	13.04.2026	Sardar Abdul Basit Khan, Advocate.

The petitioner through the instant petition filed in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 has assailed the judgment dated 18.12.2025, whereby the Additional District Judge, Ahmadpur East, while accepting his appeal, remanded the matter to the trial Court for fresh adjudication after affording opportunity to the petitioner to produce his defence and to have the case decided on merits. However, such remand has been made subject to the condition that the petitioner shall pay past and future maintenance allowance as determined earlier. The petitioner is mainly aggrieved of the imposition of the said condition.

2. Facts of the case precisely are that Mst. Yasmin Khan (respondent No.3) instituted a suit for recovery of maintenance allowance for herself and her minor daughter namely Bakhtawar Khan (respondent No.4) against the petitioner on 19.11.2022. It was averred in the plaint that respondent No.3 was married to the petitioner on 05.12.2014 and from that wedlock minor respondent No.4 was born on 16.01.2019. It was further alleged that about three years prior to the institution of the suit, the petitioner had expelled the respondents

from the matrimonial home and thereafter, neither paid any maintenance nor made any effort to resume cohabitation. The petitioner was also stated to be financially well-off, being the owner of a jewellery shop and engaged in wholesale gold business in different cities.

Since the petitioner failed to appear, he was proceeded against *ex parte* by the trial Court and upon recording *ex parte* evidence, the suit was decreed vide judgment and decree dated 16.01.2024. Through the said decree, maintenance allowance at the rate of Rs.6,000/- per month each was awarded to respondents No.3 and 4 from the date of institution of the suit, to continue in the case of respondent No.3 during the subsistence of marriage and in the case of the minor respondent No.4, till her legal entitlement, with an annual increment of 10% granted to the minor.

Feeling aggrieved of the quantum of maintenance, the respondents/plaintiffs preferred an appeal, wherein the petitioner was again proceeded against *ex parte*. The said appeal was accepted vide judgment and decree dated 20.04.2024, whereby the maintenance allowance of each of the respondents was enhanced to Rs.10,000/- per month from the date of institution of the suit till their respective legal entitlements, along with a 10% annual increase.

Subsequently, on 01.06.2024, the petitioner filed an application before the Judge, Family Court seeking setting aside of the *ex parte* judgment and decree mainly on the ground that his address was not correctly reflected in the plaint and as such no service was effected upon him. The application was contested by

the respondents through a written reply and was dismissed by the Judge Family Court vide order dated 15.07.2025. The petitioner assailed the said order through an appeal, which was accepted vide impugned judgment dated 18.12.2025 in the following terms:-

“07. Therefore, in the above mentioned circumstances the learned trial court is directed to proceed with the trial of the case by giving opportunity to the appellant/defendant to present his case subject to the payment of past and future maintenance as given in judgment dated 16.01.2024. The learned trial court is directed to give the fresh judgment after recording evidence of both the parties while maintaining conditions as mentioned supra. Hence, suit is remanded back to the learned trial court and appellant is directed to appear before the learned trial court on 10.01.2026. ---”.

Petitioner is aggrieved only of the direction/condition qua payment of past and future maintenance allowance.

3. Learned counsel for the petitioner contends that respondent No.3 had already been divorced by the petitioner on 26.06.2017, therefore, she ceased to be his wife and is no longer entitled to claim any maintenance allowance. It is argued that in such circumstances, the direction requiring the petitioner to pay her past and future maintenance is unwarranted and is likely to cause serious prejudice to his defence. Learned counsel further submits that even otherwise, the quantum of maintenance fixed for the minor is excessive and disproportionate to the petitioner's actual income and financial capacity. It is also contended that the determination of interim maintenance squarely falls within the exclusive domain of the Family Court under Section 17-A of the Family Courts Act, 1964, which is to be exercised at the time of first appearance of the defendant. According to the learned counsel, the

appellate Court, while remanding the matter, could not have assumed such jurisdiction or imposed the condition of payment of maintenance, particularly when the matter was being remitted for fresh adjudication after affording opportunity of defence to the petitioner.

4. Heard learned counsel for the petitioner and perused the record.

5. As noted above, the petitioner is aggrieved of that part of the impugned judgment dated 18.12.2025 whereby, while remanding the matter to the trial Court for fresh decision after affording him an opportunity of defence, he has been subjected to the condition of payment of past and future maintenance allowance as determined earlier. The grievance essentially revolves around the legality and propriety of imposing such condition.

6. It is by now well-settled that the liability of a father to maintain his minor child is not only a legal obligation but also a moral and social duty of the highest order. Such obligation is absolute in nature and does not depend upon the pendency of litigation between the spouses or upon the outcome thereof. A child cannot be left unattended or deprived of basic necessities of life even for a short duration, much less during the protracted course of litigation.

In the present case, the petitioner has not even asserted that he had been regularly maintaining his minor daughter after her separation from him or after institution of the suit. This omission is of considerable significance and reflects that the minor has been left to fend for herself through the agency of her mother.

7. Adverting to the record, it is evident that the maintenance allowance in favour of the respondents was initially determined by the trial Court vide judgment and decree dated 16.01.2024 after recording *ex parte* evidence, which was subsequently enhanced by the appellate Court vide judgment and decree dated 20.04.2024. Although the said judgments were later set aside on the ground of denial of opportunity to the petitioner to defend the suit, the quantification of maintenance made therein cannot be treated as wholly arbitrary or without any basis. Rather, the same provides a *prima facie* assessment of the financial needs of the claimants and the means attributed to the petitioner, which is open to re-examination upon recording of evidence after remand.

8. As regards the contention of the learned counsel for the petitioner that the appellate Court could not have imposed a condition regarding payment of maintenance in view of the provisions of Section 17-A(1) of the Family Courts Act, 1964 for that envisages fixation of interim maintenance by the Family Court at the time of first appearance of the defendant, suffice it to observe that the said provision does not curtail the jurisdiction of an appellate Court to impose reasonable conditions while granting relief of remand, particularly in the circumstances where such condition is necessary to safeguard the subsistence rights of a minor. The power to remand is discretionary in nature and can be exercised subject to such terms as the Court may deem just and proper in the facts and circumstances of the case. The petitioner, having succeeded in obtaining a remand of the case on the ground of lack of opportunity, cannot be permitted to avail such relief

unconditionally so as to defeat or delay the legitimate claims of the respondents, especially that of a minor child. The condition imposed by the appellate Court to the extent it ensures continuity of maintenance, cannot be termed as punitive or without jurisdiction, rather, it is aimed at striking a balance between the right of the petitioner to defend the proceedings and the right of the minor to receive timely financial support. At the same time, a distinction is to be drawn between the claims of respondent No.3 (wife) and respondent No.4 (minor daughter). Insofar as the minor is concerned, her entitlement to maintenance from the petitioner is unquestionable, the only issue being the quantum thereof. The amount of Rs.10,000/- per month, as fixed by the appellate Court, cannot be *prima facie* regarded as excessive keeping in view the prevailing economic conditions and the needs of a school-going child. Even otherwise, the petitioner shall have full opportunity to lead evidence before the trial Court to establish his actual income and financial capacity and any amount found to be in excess upon final adjudication can always be adjusted.

9. There is yet another aspect of the matter. The relief ultimately granted to the petitioner by the appellate Court was, in substance, restoration of the *lis* for decision on merits after affording him an opportunity of defence. It is a settled principle that where a party seeks recall of *ex parte* decree, such relief cannot be claimed as an absolute or unconditional right. The Court while extending such indulgence is competent to impose just, fair and reasonable terms so as to balance the equities between the parties, safeguard the legitimate interests of the opposite side and ensure

bona fide prosecution of the defence. Depending on the facts of each case, such conditions may include payment of costs, deposit of amounts, furnishing of security or compliance with such other directions as may be necessary to prevent abuse of process or undue prejudice occasioned by delay. Particularly where the conduct of the defaulting party is not free from doubt, or where postponement of relief may adversely affect a dependent claimant, the imposition of protective conditions squarely falls within the lawful discretion of the Court. Viewed in this context, the condition attached by the appellate Court cannot be regarded as alien to law or inherently without jurisdiction. Guidance in this regard is found in the case of “Faiz-ul-Hassan v. Mst. Jan Sultan and 2 others” (2001 SCMR 1323).

10. Apart from the foregoing, there is a public policy consideration for this Court to decline interference with the impugned order while exercising equitable discretionary jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973. The obligation of a father to maintain his minor child is a continuing and enduring duty imposed by law, morality and social conscience. Such responsibility cannot be permitted to be defeated merely because the father remained absent from the proceedings, avoided participation in the litigation or allowed the matter to proceed *ex parte* for a considerable period. If a parent, after keeping himself away for years, is allowed upon reappearance to secure unconditional reopening of the case and simultaneously evade liability for the period during which the child was entitled to support, the result would be to reward default and penalize the innocent minor who had no control over the conduct of

the parties or the pace of litigation. Courts must remain alive to the reality that the needs of a child do not stand suspended during legal contests and expenses relating to food, clothing, education, healthcare and day-to-day upbringing continue unabated. Therefore, a litigant cannot be allowed to convert his own absence or inaction into a means of escaping accrued or continuing maintenance obligations. In the present case, the petitioner seeks restoration of an opportunity to contest the matter after the respondents had already obtained decrees in their favour. In such circumstances, the condition requiring continuity of maintenance, particularly insofar as the minor respondent is concerned, advances substantial justice and prevents the reopening of proceedings from becoming an instrument for delaying or defeating the child's lawful subsistence rights.

11. The case of respondent No.3, however, stands on a somewhat different footing. While respondent No.3 claims to be wife of the petitioner and on that basis asserts entitlement to maintenance, the petitioner has taken a specific plea that he had already divorced her on 26.06.2017. Such assertion, if genuine, would naturally have a material bearing upon her claim for maintenance and is a matter to be examined by the trial Court on the basis of the relevant evidence and record. If the petitioner is in possession of any valid documentary proof regarding the alleged divorce, it shall be open to him to produce the same before the trial Court at the earliest opportunity, whereupon the said Court shall consider the effect thereof strictly in accordance with law while determining the question of interim as well as final entitlement of respondent No.3. Therefore, the

petitioner cannot seek total avoidance of the impugned order merely on the basis of an unsubstantiated plea raised in these proceedings, particularly when an efficacious remedy to establish such plea is readily available before the trial Court itself.

12. For the foregoing reasons, the impugned judgment does not call for interference by this Court in exercise of its constitutional jurisdiction. Consequently, the petition in hand being devoid of any merit is dismissed *in limine*.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**